

Kalpana vs Asharani on 7 September, 2015

WP-18091-2013
(KALPANA Vs ASHARANI)

07-09-2015

Mr. Pranay Verma, learned counsel for the petitioners.
Mr. Pushpanjali Kumar Mishra, learned counsel for respondent Nos.

1 & 2.

Heard.

In this petition under Article 227 of the Constitution of India, the petitioner has challenged the validity of the order dated 06/09/2013 passed by the trial Court by which the application preferred by petitioner under Order 1 Rule 10 of the Code of Civil Procedure has been rejected.

I have considered the submissions made by learned counsel for the parties and have perused the record. Admittedly, petitioners are sons and daughters from the second marriage and they are entitled to share in the property of the deceased Jagdish Prasad. This aspect of the matter has already been considered by a Bench of this Court in M.A. No. 1828/1999, wherein it has been held that the petitioners are entitled to share in the property of deceased Jagdish Prasad, in view of Section 16 of the Hindu Marriage Act, 1955. However, the trial Court has failed to appreciate the aforesaid aspect of the matter. For the aforementioned reasons impugned order dated 06/09/2013 is hereby quashed. The application preferred by the petitioner under Order 1 Rule 10 is allowed.

Let a copy of this order be sent to the Lower Appellate Court by Fax.

Accordingly, the petition is disposed of. Certified copy as per rules.

(ALOK ARADHE) JUDGE